

AETHER WIRELESS · KNOWLEDGE BASE

Data Plan Terms & Conditions

Category B — Policy & Process Knowledge Base

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Overview

Aether Wireless Data Plan Terms & Conditions (Document ID: AW-PLN-003, Version 3.1) establish the framework for responsible use of wireless data services across all Aether Wireless plans. These terms apply to individual consumers, families, and business customers utilizing Aether Wireless data services and are designed to ensure fair access to network resources while maintaining service quality for all subscribers.

The terms cover essential aspects of data service usage including fair usage policies, speed and throttling parameters, roaming capabilities, billing optimization strategies, and dispute resolution procedures. These conditions are effective as of June 2026 and may be updated with 30-day advance notice to subscribers. All subscribers are bound by these terms upon activation of service or continued use following any modifications.

Aether Wireless commits to transparent network management practices, FCC compliance, and customer satisfaction through clear communication of service limitations and optimization opportunities. These terms work in conjunction with the Aether Wireless Acceptable Use Policy and individual plan-specific terms to provide comprehensive service guidelines.

Fair Usage Policy

Aether Wireless data plans are intended for personal, non-commercial use by the account holder and authorized users within the same household or organization. Commercial exploitation, including but not limited to resale, redistribution, or use as a substitute for fixed internet services, violates these terms and may result in service restriction or termination.

Personal Non-Commercial Use Requirement

Data services must be used primarily for personal activities including web browsing, email, streaming media, social networking, and standard applications. Business use requires enrollment in appropriate business plans with commercial terms and service level agreements. Personal use may include limited business activities such as checking work email or conducting light remote work, but cannot serve as the primary internet connection for business operations.

No Reselling Policy

Subscribers are strictly prohibited from reselling, sharing, or distributing Aether Wireless data services to third parties for any form of compensation. This includes creating Wi-Fi hotspots for commercial purposes, sharing account credentials with non-authorized users, or using data services to provide internet access to others. Family plans permit sharing among authorized family members only, as designated during account setup.

Tethering Limitations

Tethering capabilities vary by plan tier and are subject to specific data allowances. Essential plans include 2GB of tethering data monthly, Standard plans include 5GB, and Premium/Unlimited plans include 10GB of tethering data monthly. Exceeding tethering allowances results in automatic throttling to 64kbps for tethered connections until the next billing cycle or until additional tethering data is purchased through Tethering Boost add-ons.

Tethering Boost add-ons provide 10GB of additional tethering data for \$12 and must be purchased through account settings, customer service, or the Aether Wireless mobile app. Tethering data does not carry over between billing cycles and is billed on the next invoice following purchase.

Network Management Rights

Aether Wireless reserves the right to manage network traffic to ensure optimal service quality for all subscribers. Network management practices may include:

- Prioritizing certain types of traffic during peak usage periods
- Implementing temporary speed reductions for users exceeding normal usage patterns
- Restricting access to high-bandwidth applications during network congestion
- Blocking or throttling traffic that negatively impacts network performance

Network management decisions are based on objective criteria including usage volume, time of day, and overall network capacity. Aether Wireless provides transparency regarding network management practices through regular FCC filings and customer communications.

Speed and Throttling Matrix

Aether Wireless implements tiered speed structures based on plan selection and usage patterns. Speeds are measured in megabits per second (Mbps) or kilobits per second (kbps) and represent maximum theoretical speeds under optimal conditions. Actual speeds may vary based on network conditions, device capabilities, and location.

Plan Tier Speed Allocations

Plan Tier	Base Speed	Tethering Allowance	Overage Behavior
Essential	128 kbps	2GB monthly	Throttled to 64kbps
Standard	256 kbps	5GB monthly	Throttled to 64kbps
Premium/Unlimited	512 kbps	10GB monthly	Throttled to 64kbps
Business	1 Mbps (after 200GB)	Varies by plan	Maintained speed

Speed Throttling Conditions

Speed reductions occur under specific circumstances designed to maintain network quality and fairness:

Excess Tethering: All tethering activity beyond included allowances is throttled to 64kbps regardless of plan tier. This restriction applies to all connected devices when tethering allowances are exceeded.

Business Plan Data Threshold: Business plans maintain full speed until 200GB of data usage is reached in a billing cycle. After exceeding 200GB, speeds are reduced to 1Mbps for the remainder of the cycle.

International Roaming: All plans experience reduced speeds when roaming internationally. Roaming speeds are typically 50-75% of domestic speeds and may vary significantly by country and carrier partnership. The International Roaming Pass (\$15/day) enables data services while traveling but does not guarantee domestic speed equivalents.

Network Congestion: During periods of high network demand, speeds may be temporarily reduced for users engaged in high-bandwidth activities such as video streaming or large file downloads. Congestion management is applied fairly across all users and typically resolves within 1-2 hours.

Fair Usage Violations: Users engaging in activities that violate fair usage policies may experience permanent speed reductions or service restrictions until compliance is achieved.

Speed Restoration Options

Speed restrictions can be addressed through several methods:

- Waiting for the next billing cycle to reset allowances
- Purchasing appropriate data add-ons (1GB/\$10, 5GB/\$35)
- Upgrading to a higher plan tier
- Reducing tethering usage or purchasing Tethering Boost add-ons
- Disabling international roaming when not traveling

Speed restoration is typically immediate upon purchase of add-ons or plan changes, while billing cycle resets occur automatically at the start of each new cycle.

Data Add-Ons Catalog

Aether Wireless offers on-demand data add-ons for customers who need additional data outside their base plan allowance. Add-ons are billed at the time of purchase and appear on your next invoice. All add-on data is subject to the Fair Usage Policy and must be used within the billing cycle in which they are purchased.

Available Add-Ons

Add-On	Data Amount	Price	Description
Data Top-Up	1 GB	\$10.00	Additional high-speed data for any use
Data Boost	5 GB	\$35.00	Larger data allowance for heavy users
Tethering Boost	10 GB	\$12.00	Dedicated tethering data allowance
International Roaming Pass	1 GB per day	\$15.00/day	Daily roaming allowance in 180+ countries

Tethering Boost Specific Terms

The Tethering Boost add-on provides 10 GB of additional data specifically for tethering and mobile hotspot use. This add-on is additive to any tethering allowance included in your base plan. Once the 10 GB is exhausted, tethering will revert to the standard tethering speed of 64 kbps or your base plan's tethering allowance,

whichever is applicable. Tethering Boost does not rollover to subsequent billing cycles and must be consumed within the current cycle.

General Add-On Terms

No Carryover Policy: All data add-ons expire at the end of the billing cycle in which they are purchased. Unused add-on data does not carry over to future billing cycles and is not refundable. Customers who anticipate needing additional data should purchase add-ons after reviewing their current cycle usage through their account dashboard.

Billing Timing: Add-on charges are applied immediately upon purchase and will appear on your next available invoice. For customers on monthly billing cycles, this typically means the charge appears within 1-3 business days of purchase. For customers on bi-weekly billing cycles, charges appear on the next scheduled invoice date following purchase.

Purchase Channels: Data add-ons may be purchased through the following authorized channels:

- Aether Wireless mobile application (iOS and Android)
- Online account portal at aetherwireless.com
- Customer service representatives via phone at 1-800-AETHER-1
- Select retail partner locations where Aether Wireless products are sold

Add-ons purchased through third-party resellers or unauthorized retailers are not valid and may result in service interruption. Customers should always purchase add-ons directly through Aether Wireless authorized channels.

Stackability: Customers may purchase multiple add-ons of the same or different types within a single billing cycle. However, total accumulated add-on data does not extend the expiration date beyond the current billing cycle end date.

Roaming Data Terms

Aether Wireless provides international roaming services to ensure you remain connected while traveling abroad. Our roaming network covers over 180 countries and territories worldwide, with coverage extending to major travel destinations across all continents.

Roaming Availability and Activation

International roaming is **disabled by default** on all Aether Wireless accounts. This security measure ensures that accidental or unauthorized roaming charges do not occur while you are traveling internationally. You must explicitly enable international roaming through your account settings before using data services outside the United States.

To enable international roaming:

1. Log in to your Aether Wireless account portal at aetherwireless.com or open the mobile application
2. Navigate to Settings > Mobile Networks > International Roaming
3. Toggle the roaming activation switch to ON
4. Confirm your selection and accept any applicable roaming terms

Alternatively, you may contact our customer service team at 1-800-AETHER-1 to enable roaming on your behalf. Roaming activation typically takes effect within 15-30 minutes of confirmation.

International Roaming Pass

For customers who require data while traveling internationally, Aether Wireless offers the International Roaming Pass at \$15.00 per day. This pass provides 1 GB of high-speed data per calendar day while you are in an international destination. The International Roaming Pass must be purchased before or during your travel and is billed on a per-day basis regardless of whether you use the full 1 GB allocation.

The International Roaming Pass is available for purchase through the same channels as standard data add-ons. You may purchase multiple consecutive days of the International Roaming Pass based on your travel itinerary.

Roaming Speed Terms

When international roaming is active, data speeds are reduced compared to domestic usage. While on international networks, you can expect the following speed profiles:

- **Essential Plan:** Up to 64 kbps on international roaming
- **Standard Plan:** Up to 128 kbps on international roaming
- **Premium/Unlimited Plan:** Up to 256 kbps on international roaming
- **Business Plan:** Up to 512 kbps on international roaming (after 200 GB domestic threshold)

These reduced speeds reflect the technical limitations of international roaming partnerships and infrastructure. For customers requiring higher speeds while traveling, the International Roaming Pass provides access to available network capacity in the destination country, subject to local network conditions.

Roaming Coverage and Restrictions

International roaming is available in over 180 countries and territories. Coverage availability, network quality, and speed vary by country and are subject to partnership agreements with local carriers. Some countries may have limited network coverage or be excluded from roaming services due to regulatory restrictions or carrier agreements.

The following uses are prohibited on international roaming and may result in service suspension or additional charges:

- Peer-to-peer file sharing and torrent downloads
- Server hosting or commercial hosting services
- Continuous streaming or broadcasting
- Any illegal activities under U.S. or local law

Roaming data consumption counts toward your plan's monthly data allowance and any applicable Fair Usage Policy limits. Customers on capped plans who exceed their domestic allowance while roaming will be charged at the standard overage rate or may purchase additional data add-ons.

Bill Optimization Guidance

Aether Wireless is committed to helping you get the most value from your service plan. The following guidance provides practical strategies for reducing your monthly bill while maintaining the connectivity you need.

Right-Size Your Plan Tier

If your actual data usage consistently falls below your plan's allowance, you may benefit from switching to a lower tier plan. Use the following guideline to evaluate whether a plan downgrade makes sense for you:

60-Day Average Test: Review your data usage over the most recent 60-day period. If your average daily usage is less than 60% of your current plan's monthly allowance, consider downgrading to a lower tier. For example, if you are on the Premium Plan with a 50 GB monthly allowance and your 60-day average usage is 20 GB or less (40% of your allowance), the Standard or Essential Plan may better match your needs.

To review your usage history, log in to your account portal and navigate to Billing > Usage History. The portal provides detailed breakdowns by billing cycle, including domestic data, roaming data, and tethering usage.

Plan downgrade credits: When you downgrade to a lower tier, the new rate applies to your next billing cycle. There is no penalty for plan downgrades, though you should ensure your typical usage fits within the new plan's allowance to avoid overage charges.

Activate Autopay Discount

Enrolling in automatic payment processing provides a \$5.00 monthly discount on your service plan. The autopay discount applies to your base plan charge only and does not apply to add-ons, overage charges, or one-time fees.

To activate autopay:

1. Navigate to Billing > Payment Methods in your account portal
2. Add a valid credit card, debit card, or bank account
3. Select "Enroll in Autopay" and confirm your selection
4. Ensure your payment method remains valid and has sufficient funds

The autopay discount appears as a line item on your monthly invoice. If a payment fails, the discount may be suspended until payment is successfully processed.

Family Plan Consolidation

If you have multiple Aether Wireless lines in your household, consolidating to a Family Share plan can reduce your overall costs. Family plans offer shared data allowances with per-line pricing that is typically lower than individual plan pricing. Additionally, family plans simplify billing with a single monthly statement covering all lines.

Consider the following when evaluating family consolidation:

- Total household data usage across all lines
- Number of lines that can be added to a family share plan
- Individual line requirements (international roaming, tethering, etc.)
- Early termination fees on existing individual contracts

Contact our customer service team to receive a personalized savings analysis comparing your current billing to a family plan alternative.

Wi-Fi Calling

Aether Wireless includes Wi-Fi Calling at no additional cost for customers with compatible devices. Wi-Fi Calling allows you to make and receive calls and text messages over Wi-Fi networks when cellular coverage is limited or unavailable. By using Wi-Fi Calling in areas with Wi-Fi access, you can reduce your cellular voice minute consumption and potentially avoid needing higher-tier voice plans.

To enable Wi-Fi Calling:

1. Ensure your device supports Wi-Fi Calling (check device settings or our compatibility guide)

2. Navigate to Settings > Phone > Wi-Fi Calling on your device
3. Enable Wi-Fi Calling and allow necessary permissions
4. Configure Wi-Fi Calling preferences in your account portal under Settings > Calls

Wi-Fi Calling uses your internet connection and does not consume your monthly data allowance for calls placed over Wi-Fi.

Review and Remove Unused Add-Ons

Regularly audit your active add-ons to ensure you are not paying for services you no longer need. Common areas to review include:

- **International Roaming Pass:** If you are not currently traveling, disable international roaming to prevent accidental daily charges
- **Tethering Boost:** If you no longer use tethering or mobile hotspot features, consider removing this add-on from future billing cycles
- **Data Top-Ups:** Review whether recurring data add-ons are necessary or whether your base plan allowance has increased to accommodate your needs

To modify or remove add-ons, log in to your account portal and navigate to Services > Active Add-Ons. You may cancel recurring add-ons at any time, with changes taking effect on your next billing cycle. One-time add-ons cannot be cancelled after purchase.

Compliance Notes

Notice of Changes

Aether Wireless will provide at least 30 days' advance written notice before implementing any material changes to these Data Plan Terms & Conditions, including but not limited to pricing, data allowances, speed tiers, fair usage policies, or roaming terms. Notice will be delivered via email to the account holder's registered email address and through in-account notifications. Material changes include any modifications that materially and adversely affect service quality, pricing, or customer rights and obligations. Customers will be provided with the effective date of changes and a summary of the specific modifications being implemented.

FCC Network Management Disclosure

Aether Wireless adheres to all Federal Communications Commission (FCC) network management transparency requirements. The company manages network congestion through reasonable, customer-friendly practices that are applied no more restrictively than necessary. Network management activities may include application-agnostic traffic prioritization during periods of network congestion, temporary data speed reductions for customers exceeding their plan allowances, and fair resource allocation to ensure optimal service for all users. Aether Wireless does not block lawful websites, applications, or services, nor does it unreasonably discriminate against specific types of internet traffic. Detailed information about network management practices is available upon request and through the company's public network management disclosure page.

Termination Rights for Material Changes

Customers have the right to terminate their service without early termination fees or penalties if Aether Wireless implements material changes to these terms that materially and adversely affect the service. To exercise this right, customers must provide written notice of termination within 30 days of receiving notice of the material change. Termination requests must be submitted through customer service channels and will be processed

within 10 business days. Customers who terminate under this provision will receive a prorated refund for any prepaid service periods, and all associated charges will be discontinued as of the termination date. This termination right does not apply to routine plan updates, promotional adjustments, or changes required by law or regulatory mandate.

Regulatory Compliance

Aether Wireless maintains compliance with all applicable federal, state, and local regulations governing wireless telecommunications services. The company adheres to FCC rules regarding customer information privacy, billing transparency, service quality standards, and emergency services access. All data collection, processing, and storage practices comply with applicable privacy laws and regulations. Customers may request information about the company's compliance with specific regulatory requirements through customer service channels.

Dispute Resolution

Initial Complaint Process

Customers must submit any complaints or disputes regarding service, billing, or these terms and conditions within 30 days of the incident giving rise to the dispute. Complaints can be filed through multiple channels: by calling customer service at the number provided on monthly statements, sending written correspondence to the address listed on billing statements, submitting through the online account portal, or via email to the designated customer service email address. All complaints must include the customer's account information, a detailed description of the issue, any relevant dates or circumstances, and the specific resolution being requested. Complaints submitted after the 30-day window may not be eligible for investigation or resolution under this process.

Investigation Timeline

Upon receipt of a customer complaint, Aether Wireless will acknowledge the complaint within 2 business days and provide a case reference number for tracking purposes. The company will conduct a thorough investigation of all facts and circumstances surrounding the dispute. A formal response with findings and proposed resolution will be provided within 5 business days of complaint receipt. Complex disputes requiring additional investigation may require additional time, in which case customers will be notified of the extended timeline and provided with regular status updates until resolution is reached. All communications regarding the dispute will be documented and maintained in the customer account record.

Credits and Remedies

Customers who submit verified complaints that are substantiated through investigation may receive appropriate credits or remedies. Credits will be applied to the customer's account within 2 billing cycles of resolution and will appear on the next available invoice. Eligible remedies include service credits for service interruptions, billing adjustments for erroneous charges, data allowance restorations for service-related issues, and account corrections for administrative errors. The amount and type of credit or remedy will be determined based on the specific circumstances of each case and will be communicated clearly in the resolution response. Credits are non-transferable and have no cash value unless the account is closed, in which case refunds may be issued for any remaining credit balances.

Escalation to Regulatory Authorities

If a customer is not satisfied with Aether Wireless's resolution of a dispute, or if the company fails to respond within the specified timeframes, customers may escalate their complaint to appropriate regulatory authorities.

After 60 days from the original complaint date, customers may file complaints with the Federal Communications Commission (FCC) through the agency's consumer complaint portal at www.fcc.gov/complaints, by calling 1-888-CALL-FCC, or by mail to the FCC Consumer and Governmental Affairs Bureau. State public utility commissions may also accept complaints regarding telecommunications services, and customers should contact their respective state commission for jurisdiction-specific complaint procedures. Aether Wireless will cooperate fully with any regulatory investigation and will provide requested documentation and information within the timeframes required by the regulatory authority.

Binding Arbitration

Any disputes that cannot be resolved through the customer service process may be subject to binding arbitration at the customer's option. Arbitration will be conducted under the rules of the American Arbitration Association or another mutually agreed-upon arbitration service. The customer must opt into arbitration within 60 days of exhausting the internal dispute resolution process. Arbitration costs will be shared according to the arbitration service's rules, and the arbitrator's decision will be final and binding on both parties. This arbitration provision does not prevent customers from seeking relief through small claims court for disputes within that court's jurisdiction or from filing complaints with regulatory authorities.

Q: Can I share or resell my data with others?

A: Data is for personal, non-commercial use only. Reselling or redistributing your data connection is not permitted under our fair usage policy.

Q: What happens if I exceed my tethering allowance?

A: If you exceed your tethering allowance, speeds will be reduced to 64kbps. You can restore higher speeds by purchasing a Tethering Boost add-on (10GB for \$12).

Q: Do unused data or add-ons roll over to the next month?

A: No. All data and add-on purchases are non-refundable and do not carry over. Unused data is lost at the end of your billing cycle.

Q: How do I enable international roaming?

A: International roaming is disabled by default. You can enable it anytime through your account settings. Roaming is available in over 180 countries, and you may purchase an International Roaming Pass for \$15 per day.

Q: What are the speed tiers for each plan?

A: Essential plan includes speeds up to 128kbps, Standard up to 256kbps, Premium and Unlimited up to 512kbps, and Business plan up to 1Mbps after 200GB of usage.

Q: How can I reduce my monthly bill?

A: You can lower your bill by switching to a lower tier if your 60-day average usage is below 60%, enrolling in autopay for a \$5 discount, consolidating Family plans, enabling Wi-Fi calling, or removing unused add-ons.

Q: How do I dispute a charge on my account?

A: You must file a complaint within 30 days of the charge. We will investigate and respond within 5 business days. Credits will be issued for verified issues. If unresolved after 60 days, you may escalate to the FCC.

Contact Finance Operations:

Email: finance@aetherwireless.com